testbook PASS PRO MAX

General Knowledge

Indian Polity

STUDY NOTES

Supreme Court

SUPREME COURT

Introduction to the Supreme Court of India:

- Before independence, India's highest judicial authority was the Federal Court of India, established by the **Government of India Act, of 1935.**
- The Supreme Court of India was officially established on **January 28, 1950**, just two days after India adopted its Constitution and became a republic on **January 26, 1950.**
- The Supreme Court of India is the **highest judicial court** now and the final court of appeal
- It is with the **power of Judicial review.**
- India has a single, unified judicial system with a **three-tier structure** as a federal state.

Brief History of the Supreme Court of India

- **Regulating Act of 1773:** The promulgation of Regulating Act of 1773 established the Supreme Court of Judicature at Calcutta as a Court of Record, with full power & authority.
- The **Supreme Courts in Madras and Bombay** were established by **King George III in 1800** and **1823**, respectively. After India gained independence in 1947, the Constitution of India was established on **26 January 1950.**
- The Supreme Court of India was also established, and its **first session** was held on **28 January 1950.**
- The Supreme Court of India is dealt with in **Part V** of the Constitution of India, specifically in Chapter IV. This chapter covers the Union Judiciary and includes **Articles 124 to 147**, which provide detailed provisions regarding the Supreme Court.

Important Articles related to the Supreme court

Article No.	Subject Matter
124	Establishment and Constitution of Supreme Court
125	Salaries, etc., of Judges
126	Appointment of acting Chief Justice
127	Appointment of Judges of High Courts
128	Power of the Supreme Court to issue certain writs
129	Original Jurisdiction of Supreme Court
130	The seat of Supreme Court
131	Original Jurisdiction of the Supreme Court in certain cases
132	Appellate Jurisdiction of Supreme Court
133	Appellate Jurisdiction of the Supreme Court in certain cases
134	Certificate for appeal by special leave to appeal
135	Review of judgments and orders
136	Power of the Supreme Court to transfer cases
137	Power of the Supreme Court to review its judgments

testbook PASS PRO MAX

138	Contempt of Supreme Court
139	Jurisdiction and powers of High Courts
139A	Transfer of cases from one High Court to another
140	Establishment of High Courts
141	The decision of the Supreme Court is binding on all courts
142	Power of the Supreme Court to issue directions or orders

Qualifications For Supreme Court

- The **qualifications** for becoming a judge of the Supreme Court of India are outlined in **Article 124** of the Indian Constitution:
- **Citizenship**: The person must be a citizen of India.
- **Age**: The person must have attained the age of 35 years.
- **Legal Practice**: The person must have been a judge of a High Court for **at least five years or an advocate of a High Court for at least ten years.**
- Additionally, the President of India appoints the judges of the Supreme Court in consultation with the Chief Justice of India and other judges of the Supreme Court

FUN FACT

- The Supreme Court of India has one of the largest courtrooms in the world, capable of accommodating over 1,000 people.
- Justice M. Fathima Beevi was the first woman to become the Chief Justice of India.
- Justice Y. V. Chandrachud holds the record for the longest-serving Chief Justice of India.
- The Supreme Court building is a modern architectural masterpiece, designed by renowned architect A. P. Kanvinde.

Appointment of Judges

- The judges of the Supreme Court are appointed by the **President**.
- The CJI is appointed by the President after consultation with such judges of the Supreme Court and high courts as he deems necessary.

- The appointment of other judges is made by the President after consulting with the Chief Justice and other judges of the Supreme Court.
- There are no specific criteria for determining merit and suitability, but factors such as legal knowledge, judicial experience, and integrity are likely to be considered.

Oath or Affirmations

- The provisions related to oaths and affirmations for various constitutional posts, including judges of the Supreme Court, are provided in the **Third Schedule** of the Constitution of India.
- A person appointed as a judge of the Supreme Court, before entering upon his office, has to make and subscribe to an oath or affirmation before the President, or some other person appointed by him for this purpose
- The **Chief Justice of India (CJI)** and other judges of the Supreme Court are required to take an oath or affirmation before they enter their office.

Tenure

- The tenure of the judges of the Supreme Court of India, including the Chief Justice of India (CJI), is primarily defined in Article 124 of the Constitution of India. Here's an overview of their tenure:
- **Retirement Age**
  - The judges of the Supreme Court, including the Chief Justice, hold office until they reach the **age of 65 years.**
  - After reaching the **retirement age,** they must vacate their position.
- **Resignation**
  - A judge may choose to resign before the retirement age by writing to the President of India.
- **Removal from Office (Impeachment)**
  - A Supreme Court judge can only be removed from office for **proven misbehaviour or incapacity.**
  - The process of removal is detailed in Article 124(4), and it is commonly referred to as impeachment.
  - A motion for removal can be initiated in either house of Parliament.
  - The motion must be supported by a special majority **(two-thirds of the members present and voting).**
  - If the motion is passed in both houses, the President can issue an order for the judge's removal.
  - The process for removal is governed by the **Judges (Inquiry) Act, 1968.**

- **Ad Hoc Judges:**
  - **Article 127** allows the Chief Justice to appoint ad hoc judges from among High Court judges when there is a lack of quorum in the Supreme Court. These judges serve temporarily.
- **Reappointment**
  - After retirement, a judge of the Supreme Court cannot practice in any court in India, but they may be appointed to certain judicial or **quasi-judicial positions**, like tribunals or commissions, with the approval of the government.

Salaries and Allowances

- The salaries, allowances, and privileges of the judges of the Supreme Court of India, including the Chief Justice of India (CJI), are specified in **Article 125** of the Constitution of India.
- This article provides the framework for determining the remuneration and related benefits for judges, subject to certain laws passed by Parliament.
- The salaries, allowances, privileges, leave and pension of the judges of the Supreme Court are determined from time to time by the Parliament. They cannot be varied to their disadvantage after their appointment except during a financial emergency

Structure of the Supreme Court of India

- **Chief Justice of India (CJI)**
  - The Chief Justice of India (CJI) is the head of the Supreme Court and the most senior judge.
  - The CJI is responsible for the overall functioning of the court, assigning cases to different judges, and leading important cases, especially those heard by larger benches (like a 5 or 7-judge bench).
  - The CJI is appointed by the President of India, usually based on seniority (the longest-serving judge is typically chosen**).**
- **Number of Judges**
  - Originally, the Supreme Court started with 8 judges (including the Chief Justice).
  - As of 2023, the sanctioned strength is 34 judges (including the Chief Justice). This number has been increased over the years to handle the rising number of cases.
  - Judges are appointed by the President of India based on recommendations from a collegium system, which includes the Chief Justice and senior judges of the Supreme Court.
- **Court Hierarchy and Benches**
  - Single Judge or Division Bench:

- he Supreme Court can have cases heard by a single judge or a division bench of two or three judges, depending on the case's importance.
- Larger Benches: Important cases, especially those that involve questions of constitutional interpretation, are heard by larger benches of 5, 7, or more judges. This is done to ensure a balanced decision for complex legal questions.
- Full Court: In rare cases of national importance, the court may sit as a full bench with all available judges.

Jurisdiction of Supreme Court

- The Supreme Court of India has extensive jurisdiction that encompasses various types of cases and matters.
- Its jurisdiction can be classified into three main categories:
- **Original Jurisdiction, Appellate Jurisdiction, and Advisory Jurisdiction**

- **Original Jurisdiction**
  - The Supreme Court has the authority to hear cases directly, without them being first heard in a lower court.
  - **Article 131: The Supreme Court has original jurisdiction in disputes between**:
    - The Government of India and one or more states.
    - Two or more states.
    - Any dispute involving the interpretation of the Constitution.
  - This jurisdiction is exercised primarily in cases involving the federal structure and constitutional issues.
- **Writ Jurisdiction**
  - The Supreme Court is empowered to issue writs, including **habeas corpus, mandamus, prohibition, quo-warranto, and certiorari** for the enforcement of the fundamental rights of an aggrieved citizen.
  - In this regard, the Supreme Court has original jurisdiction in the sense that an aggrieved citizen can go directly to the Supreme Court, not necessarily by way of appeal.
  - However, the **writ jurisdiction** of the Supreme Court is not exclusive.
  - The High Courts are also empowered to issue writs for the enforcement of the **Fundamental Rights.**
- **Appellate Jurisdiction**
  - The Supreme Court is primarily a court of appeal and hears appeals against the judgements of the **lower courts.**
  - It enjoys a wide appellate jurisdiction which can be classified under four heads:

- Appeals in constitutional matters
- Appeals in civil matters
- Appeals in criminal matters
- Appeals by special leave

- **Advisory Jurisdiction**
  - The Supreme Court can provide advisory opinions to the President of India on legal or constitutional questions.
  - **Article 143: The President can refer a question of law or fact to the Supreme Court for its opinion**.
  - While these opinions are not binding, they carry significant weight and can guide the government's actions.

testbook PASS PRO MAX